

Unreasonable Behaviour Policy

Aster Group is the overarching brand name of Aster Group Ltd and all of its subsidiaries.

1 Scope

- 1.1 Aster understands and acknowledges that most of the contact we receive is because a customer has a concern with their home or tenancy. We recognise that anything relating to a customer's home or tenancy can be an emotive subject and give our customers great cause for concern. Whilst most of our customers and those acting on their behalf are polite and respectful occasionally a customer, or those acting on their behalf, behave in a way that is unreasonable.
- 1.2 Behaviour becomes unreasonable when it involves the abuse of colleagues from customers, a disregard for our procedures and when managing that behaviour takes up a disproportionate amount of time that prevents us from dealing with the customers enquiry. Furthermore, it is recognised that this behaviour diverts our resources from providing services to other customers.
- 1.3 The aim of this policy is to protect colleagues from abuse and the effects of unreasonable behaviours. It supports us in fulfilling our commitment to a safe working environment, providing colleagues with support for their safety and wellbeing. This policy will be accompanied by a detailed procedure and associated training.
- 1.4 The purpose of this policy is to address issues of unreasonable behaviour proportionately and fairly, whilst having regard to the factors that influence such behaviour. We know that where incidents of abusive or unreasonable behaviour are not adequately addressed, that this can negatively affect our ability to provide services to our customers.
- 1.5 The aim of this policy is to create a consistent and fair approach and take appropriate and proportionate steps to manage unreasonable behaviour and the impact it has on the business.
- 1.6 Aster will always act in good faith. We recognise that every customer is different and will have different needs and preferences. This will include the most effective method and style of communication with them. Aster colleagues will take a non-judgemental approach and will always endeavour to support the customer in the best way we can.
- 1.7 For the purposes of this policy, we include our Charitable Beneficiaries, Stakeholders, Doners and Service Users under our customer umbrella.
- 1.8 **Definitions of unreasonable behaviours:**
We have adopted the four definitions of unreasonable behaviours given by the Housing Ombudsman:
 - **Unreasonable demands** - requesting large volumes of information, asking for responses within a short space of time, refusing to speak to an individual or insisting on speaking with another.
 - **Unreasonable persistence** - refusing to accept the answer that has been provided, repeated or excessive requests for information, continuing to raise the same subject matter without providing any new evidence, continuously adding to or changing the subject matter of the complaint or request.

- **Verbal abuse, aggression, violence** - this is not just limited to actual physical or verbal abuse but can include derogatory remarks, rudeness, inflammatory allegations and threats of violence.
- **Overload of letters, calls, emails or contact via social media** - this could include the frequency of contact, as well as the volume of correspondence received as well as the sending of emails to excessive numbers of colleagues or departments within Aster as well as the frequency and length of telephone calls.

1.9 The Equality Act (2010) makes three types of harassment unlawful. These are:

- harassment related to a 'relevant protected characteristic'
- sexual harassment, and
- less favourable treatment of a worker because they submit to, or reject, sexual harassment or harassment related to sex or gender reassignment

1.10 Aster will not tolerate any form of harassment of its employees and will take preventative measures to ensure that its employees are not subject to sexual harassment, in line with The Worker Protection Act (2023). The act defines sexual harassment as: "Unwanted conduct of a sexual nature which has the purpose or effect of violating a worker's dignity, or creating an intimidating, hostile, degrading, humiliating or offensive environment for that worker".

2 Policy Statement

- 2.1 In line with the requirements of the [Housing Ombudsman Complaint Handling Code](#), this policy details what we consider to be unreasonable behaviour and the steps we will take to manage it. All customers should be dealt with fairly, honestly, consistently, and appropriately including those whose actions are considered unreasonable.
- 2.2 We will always listen to our customers and recognise that even when someone exhibits unreasonable behaviours, they may have a valid point.
- 2.3 We will always look to resolve issues with customers and find solutions. We will work with family members and those authorised to act on customers behalf where permissions are in place.
- 2.4 We will look to engage with and signpost our customer to support services should they be struggling. We know that sometimes people under pressure, or who are angry, frustrated or fearful exhibit unreasonable behaviours. We will always try to understand and overcome these barriers as we deliver our landlord services.
- 2.5 We will always ensure that customer's exhibiting unreasonable behaviour have access to all the landlord services they are entitled to. However, we may need to change how they access these services. Examples of this include, but are not limited to, Single Points of Contact (SPOCs) for the customer, working with a third party, or only accepting contact by email for certain issues.
- 2.6 We will always consider the Equality Act 2010 and show regard to any protected characteristics, but we will not tolerate the harassment of our colleagues. Similarly, restrictions imposed on a customer's contact will be tailored to their individual circumstances and needs as far as is reasonably practicable. We acknowledge some of our customers may be experiencing complex mental health challenges that may lead to the

display of unreasonable behaviour. Furthermore, we recognise that some of our Service Users and Beneficiaries may present their communication in a style that could be misinterpreted as aggressive or intimidating.

- 2.7 We will always consider and uphold the customers data access rights under the Data Protection Act except where requests are deliberately excessive or manifestly unfounded as prescribed by the law.
- 2.8 We have a responsibility to make referrals to specific agencies for any safeguarding concerns and we will follow our safeguarding policies and procedures.
- 2.9 We recognise that unreasonable behaviour can be exhibited not just on the phone, in person, or in emails and letters, it can also be displayed online and on our digital platforms.
- 2.10 We will annually review our customers for whom measures under this policy are in place. Customers will be informed of the review decision.
- 2.11 Consideration must be given to ensure a customer with a SPOC does not receive preferential treatment or an enhanced level of service.
- 2.12 Customers are reminded of their tenancy obligation that states customers must not, nor must anyone living in or visiting the Property, harass, hinder, obstruct, threaten, abuse or assault any employee, agent or contractor of ours whilst they are carrying out their duties, or at any other time, whether face to face, or remotely by telephone, letter, email or social media.
- 2.10 **Roles and Responsibilities:**
- Relevant service managers will consider solutions to cases where it is necessary to classify a customer as displaying unreasonable behaviours and imposing measures to better manage these.
 - The individual will be notified, where appropriate of the intent to change access to arrangements clearly stating the reasons for such action.
 - A digital record will be kept of the decision made and the reasons for restricting access.
 - The relevant service manager will review the cases after a period of 12 months to decide if any restrictions can be lifted. The customer will be notified of the decision. Relevant colleagues will be made aware of the change in status.
 - We may choose to review or remove any restriction or intervention at the end of a specific process (I.E when a kitchen or bathroom is refurbished), which has caused a customer to exhibit the unreasonable behaviour.

3 Monitoring and Review

- 3.1 The effectiveness of this policy will be continuously monitored, and the embedding of the policy scrutinised after 12 months by the Customer Services Operational Scrutiny Panel.
- 3.2 We will monitor the number of incidents of Unreasonable Behaviour being recorded including the type of abuse and the measures put in place to mitigate this.

- 3.3 We will review where we have implemented contact restrictions as a result of Unreasonable Behaviour.
- 3.4 This policy will be reviewed every 3 years unless business need, regulation or legislation prompts an early review.

4 Related Policies and Procedures

This Policy, in conjunction with associated documents outlined below, sets out Aster Group's approach to meeting the requirements outlined by the RSH Neighbourhood and Community Standard 2025.

Documents available to Aster Group colleagues and in the public domain

- 4.1 ASB Policy
- 4.2 Complaints Policy
- 4.3 Customer Voice Policy
- 4.4 Data Protection, Privacy, and Confidentiality Policy
- 4.5 Diversity & Inclusion Policy
- 4.6 Domestic Abuse Policy
- 4.7 Group Health and Safety Policy
- 4.8 Income Management Policy
- 4.9 Leasehold and Freehold Management Policy
- 4.10 Neighbourhood Management Policy
- 4.11 Safeguarding Policy
- 4.12 Tenancy Policy
- 4.13 Vulnerability Policy

Documents available to Aster Group colleagues only

- 4.14 Abandoned Vehicle Procedure
- 4.15 AdHoc Requests for Information Procedure
- 4.16 ASB Procedure
- 4.17 Complaints Procedure
- 4.18 Dignity at Work Procedure
- 4.19 Electrical Safety Procedure
- 4.20 Environmental ASB Procedure and Asset Management Strategy 2024
- 4.21 Financial Wellbeing Service Procedure
- 4.22 Fire Safety Procedure
- 4.23 Gas, Oil and Solid Fuel Procedure
- 4.24 Health & Safety Inspection Procedure for Independent Living Schemes
- 4.25 Lifts and Lifting Equipment Procedure Lone Working Procedure
- 4.26 Neighbourhood Inspections Procedure
- 4.27 Neighbourhood Nuisance Procedure
- 4.28 Post-Inspection Procedure
- 4.29 Responsive Repairs Procedure
- 4.30 Safe Procedure
- 4.31 Safeguarding Adults and Children Procedure
- 4.32 Section 21 Notice Procedure
- 4.33 Supporting Data Subject Rights Procedure
- 4.34 Unreasonable Behaviour Procedure
- 4.35 Water Safety Procedure

5 Governance			
Effective From:	17/12/2024	Expires:	17/12/2027
Policy Owner:	Darren Brazil- Regional Operations Director		
Policy Author:	Claire Harding- Policy Officer		
Approved by:	<i>Customer Services Operational Leadership Team</i>		
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